APPROVED
APRIL 16, 2024
BY GOVERNOR

CHAPTER
630
PUBLIC LAW

STATE OF MAINE

IN THE YEAR OF OUR LORD

TWO THOUSAND TWENTY-FOUR

S.P. 610 - L.D. 1537

An Act to Amend the Laws Relating to the Prevention of Perfluoroalkyl and Polyfluoroalkyl Substances Pollution

Be it enacted by the People of the State of Maine as follows:

Sec. 1. 38 MRSA §1614, as amended by PL 2023, c. 138, §§1 to 4, is further amended to read:

§1614. Products containing PFAS

1. Definitions. As used in this section, unless the context otherwise indicates, the following terms have the following meanings.

A. "Carpet or rug" means a consumer product made from natural or synthetic fabric ~~marketed or~~ intended ~~for use~~ to be used as a floor covering inside commercial or residential buildings. "Carpet or rug" includes, but is not limited to, a carpeted doormat, but does not include:

(1) A carpet or rug intended solely for outdoor use;

(2) A carpet or rug intended solely for use inside an aircraft, train, watercraft, automobile, light duty truck, van, bus or any other vehicle and any aftermarket or replacement part marketed solely for use in a vehicle;

(3) A resilient floor covering;

(4) Artificial turf;

(5) A wall hanging or covering;

(6) A table mat; or

(7) A camping sleeping mat.

A-1. "Adult mattress" means a mattress that is not a crib mattress or a toddler mattress.

A-2. "Aerosol propellant" has the same meaning as in section 1613, subsection 1, paragraph A.

A-3. "Air care product" means a chemically formulated consumer product labeled to indicate that the purpose of the product is to enhance or condition an indoor environment by eliminating odors or freshening the air.

A-4. "Aircraft" means a contrivance operated by direct physical contact from a human that is used or designed for navigation of or flight in the air that requires certification and registration as prescribed by federal law or regulation. "Aircraft" does not include:

(1) A lighter-than-air balloon operated by direct physical contact from a human; or

(2) An ultralight vehicle, as defined in 14 Code of Federal Regulations, Part 103, regardless of whether the ultralight vehicle is certified by the United States Department of Transportation, Federal Aviation Administration.

A-5. "Alternative" means a substance or chemical that, if used in place of a PFAS in a product, would result in a functionally equivalent product and would reduce the potential for harm to human health or the environment or that has not been shown to pose the same or greater potential harm to human health or the environment as the PFAS. "Alternative" includes:

(1) A reformulated version of a product in which the intentionally added PFAS in the product has been removed; and

(2) Changes to a product's manufacturing process that result in the removal of the PFAS from the product.

A-6. "Architectural fabric structure" means a permanent fabric structure that is intrinsic to the design or construction of a building.

A-7. "Artificial turf" means an artificial product made from synthetic material that simulates the appearance of natural turf, grass, sod or lawn.

A-8. "Automotive maintenance product" means a chemically formulated consumer product labeled to indicate that the purpose of the product is to maintain the appearance of a motor vehicle. "Automotive maintenance product" includes products for washing, waxing, polishing, cleaning or treating the exterior or interior surface of a motor vehicle, but does not include automotive paint or automotive paint repair products.

A-9. "Cleaning product" means a finished product used primarily for domestic, commercial or institutional cleaning purposes, including, but not limited to, an air care product, an automotive maintenance product, a general cleaning product and a polish or floor maintenance product.

A-10. "Cookware product" means a durable houseware product intended to be used to prepare, dispense or store food, foodstuffs or beverages, including, but not limited to, a pot, pan, skillet, grill, baking sheet, baking mold, tray, bowl and cooking utensil.

A-11. "Cosmetic product" means a product intended to be rubbed, poured, sprinkled or sprayed on, introduced into or otherwise applied to the human body for cleansing, beautifying, promoting attractiveness or altering the appearance. "Cosmetic product" includes any product intended for use as a component of another cosmetic product, but does not include soap or a product that requires a prescription for distribution or dispensing.

B. "Currently unavoidable use" means a use of PFAS that the department has determined by rule under this section to be essential for health, safety or the functioning of society and for which alternatives are not reasonably available.

B-1. "Essential for health, safety or the functioning of society" means a use of a PFAS in a product when the function provided by the PFAS is necessary for the product to perform as intended, such that the unavailability of the PFAS for use in the product would cause the product to be unavailable, which would result in:

(1) A significant increase in negative health outcomes;

(2) An inability to mitigate significant risks to human health or the environment; or

(3) A significant disruption of the daily functions on which society relies.

C. "Fabric treatment" means a substance applied to fabric to give the fabric one or more characteristics, including but not limited to stain resistance or water resistance.

C-1. "Foam" has the same meaning as in section 1613, subsection 1, paragraph K. "Foam" does not include a firefighting or fire-suppressing foam or related product regulated under section 424-C.

D. "Intentionally added PFAS" means PFAS added to a product or one of its product components to provide a specific characteristic, appearance or quality or to perform a specific function. "Intentionally added PFAS" also includes any degradation by-products of PFAS.

D-1. "Juvenile product" means a product designed or marketed for use by infants and children under 12 years of age including, but not limited to: a baby or toddler foam pillow; bassinet; bedside sleeper; booster seat; changing pad; child restraint system for use in motor vehicles and aircraft; co-sleeper; crib mattress; highchair; highchair pad; infant bouncer; infant carrier; infant seat; infant sleep positioner; infant swing; infant travel bed; infant walker; nap cot; nursing pad; nursing pillow; play mat; playpen; play yard; polyurethane foam mat, pad or pillow; portable foam nap mat; portable infant sleeper; portable hook-on chair; soft-sided portable crib; stroller; and toddler mattress. "Juvenile product" does not include an adult mattress or an electronic product marketed for use by children under 12 years of age, including a personal computer, audio and video equipment, calculator, wireless telephone, game console, handheld device incorporating a video screen and any associated peripheral, such as a mouse, keyboard, power supply unit or power cord.

D-2. "Known to or reasonably ascertainable by" means, with respect to a person, all information in the person's possession or control as well as all information that a reasonable person similarly situated might be expected to possess, control or know.

E. "Manufacturer" means the person that manufactures a product or whose brand name is affixed to the product. In the case of a product imported into the United States, "manufacturer" includes the importer or first domestic distributor of the product if the person that manufactured or assembled the product or whose brand name is affixed to the product does not have a presence in the United States.

E-1. "Medical device" has the same meaning as the term "device" as defined in 21 United States Code, Section 321(h).

E-2. "Off-highway vehicle" means a vehicle designed to be or marketed as capable of off-highway operation, including, but not limited to:

(1) A motorcycle or motor-driven cycle;

(2) A snowmobile or other vehicle designed to travel over snow or ice;

(3) A sand buggy, dune buggy or similar all-terrain vehicle;

(4) A motor vehicle commonly referred to as a jeep; and

(5) A recreational off-highway vehicle.

E-3. "Outdoor apparel for severe wet conditions" means a clothing item that is an extreme and extended use product designed for outdoor sports experts for applications that provide protection against extended exposure to extreme rain conditions or against extended immersion in water or wet conditions to protect the health and safety of the user and that are not marketed for general consumer use, including, but not limited to, such extreme and extended use products designed for offshore fishing, offshore sailing, whitewater kayaking and mountaineering.

F. "Perfluoroalkyl and polyfluoroalkyl substances" or "PFAS" means substances that include any member of the class of fluorinated organic chemicals containing at least one fully fluorinated carbon atom.

G. "Product" means an item manufactured, assembled, packaged or otherwise prepared for sale to consumers, including its product components, sold or distributed for personal, residential, commercial or industrial use, including for use in making other products.

H. "Product component" means an identifiable component of a product, regardless of whether the manufacturer of the product is the manufacturer of the component.

H-1. "Proprietary information" means information that is a trade secret or production, commercial or financial information the disclosure of which would impair the competitive position of the submittor and would make available information not otherwise publicly available.

I. "Publicly owned treatment works" has the same meaning as in section 361-A.

J. "Refrigerant" has the same meaning as in section 1613, subsection 1, paragraph Y.

K. "Single-use" means, with respect to a product, conventionally disposed of after one use or not sufficiently durable or washable to be, or not intended to be, reusable or refillable.

L. "Ski wax" means a lubricant applied to the bottom of snow runners, including, but not limited to, skis and snowboards, to improve grip or glide properties. "Ski wax" includes related tuning products.

M. "Textile" means an item made in whole or in part from natural or synthetic fiber, yarn or fabric, including, but not limited to, leather, cotton, silk, jute, hemp, wool, viscose, nylon and polyester. "Textile" does not include a single-use absorbent hygiene product or a single-use paper hygiene product, including, but not limited to, toilet paper, paper towels or tissues.

N. "Textile article" means a textile good of a type customarily and ordinarily used in households and businesses. "Textile article" includes, but is not limited to, apparel, accessories, handbags, backpacks, draperies, shower curtains, furnishings, upholstery, beddings, towels, napkins and tablecloths, but does not include:

(1) A carpet or rug;

(2) A treatment for use on converted textiles or leathers;

(3) A textile used in or designed for laboratory analysis and testing;

(4) A stadium shade or other architectural fabric structure; or

(5) Filtration media or a filter product used in industrial applications, including, but not limited to, chemical or pharmaceutical manufacturing and environmental control technologies.

O. "Upholstered furniture" means an article of furniture that is designed to be used for sitting, resting or reclining and that is wholly or partly stuffed or filled with any filling material.

P. "Vehicle" means a device by which any person or property may be propelled, moved or drawn upon a way but does not include such a device that is moved exclusively by human power or that is used exclusively upon stationary rails or tracks.

2. Notification. ~~A~~ Except as provided pursuant to paragraph D or subsection 3, a manufacturer of a product for sale in the State that contains intentionally added PFAS and for which the department has determined that the use of PFAS in the product is a currently unavoidable use in accordance with subsection 5, paragraph F shall comply with the requirements of this subsection.

A. ~~Except as provided in subsection 3, by January 1, 2025, a~~ The manufacturer ~~of a product for sale in the State that contains intentionally added PFAS~~ shall submit to the department a written notification that includes, to the extent known to or reasonably ascertainable by the manufacturer:

(1) A brief description of the product, including an estimate of the total number of units of the product sold annually in the State or nationally;

(2) The purpose for which PFAS are used in the product, including in any product components;

(3) The amount of each of the PFAS, identified by its chemical abstracts service registry number or in the absence of this number a description approved by the department, in the product, reported as an exact quantity, or as the amount of total organic fluorine if the amount of each of the PFAS ~~compound~~ is not known, determined using commercially available analytical methods or based on information provided by a supplier as falling within a range approved for reporting purposes by the department or, if the manufacturer is unable to provide information regarding the amount of each of the PFAS in the product, the total weight of the product;

(4) The name and address of the manufacturer, and the name, address and phone number of a contact person for the manufacturer; ~~and~~

(4-A) The identification of the applicable determination adopted by the department by rule pursuant to subsection 5, paragraph F that the use of PFAS in the product is a currently unavoidable use; and

(5) Any additional information ~~established~~ required by the department by rule ~~as necessary to implement the requirements of this section~~.

A-1. At the time the manufacturer submits to the department the written notice required in paragraph A, the manufacturer shall also pay to the department the applicable fee established by the department by rule pursuant to subsection 6.

B. With the approval of the department, ~~a~~ the manufacturer may supply the information required in paragraph A for a category or type of product rather than for each individual product.

C. In accordance with rules adopted by the department, ~~a~~ the manufacturer shall update and revise the information in the written notification whenever there is significant change in the information or when requested to do so by the department.

D. The requirements of this subsection do not apply to a manufacturer that employs ~~25~~ 100 or fewer people.

3. Waiver of notification; coordination with other states~~; extension of deadline~~. The department may waive all or part of the notification requirement under subsection 2 if the department determines that substantially equivalent information is already publicly available. The department may enter into an agreement with one or more other states or political subdivisions of a state to collect notifications and may accept notifications to a shared system as meeting the notification requirement under subsection 2. ~~The department may extend the deadline for submission by a manufacturer of the information required under subsection 2 if the department determines that more time is needed by the manufacturer to comply with the submission requirement.~~

4. Exemptions. The following are exempt from this section:

A. A product for which federal law governs the presence of PFAS in the product in a manner that preempts state authority;

B. A package, as defined in Title 32, section 1732, subsection 4, for a product, except when the package is the product of the manufacturer. The exemption under this paragraph does not apply to the package of a product prohibited from sale, offer for sale or distribution for sale pursuant to subsection 5, paragraph B, B-1, D or E if that package is a fluorinated container or a container that otherwise contains intentionally added PFAS; ~~and~~

C. A used product or used product component~~.~~;

D. A firefighting or fire-suppressing foam or related product regulated under section 424-C;

E. A prosthetic or orthotic device or any product that is a medical device, drug or biologic or that is otherwise used in a medical setting or in medical applications that are regulated by or under the jurisdiction of the United States Food and Drug Administration;

F. A veterinary product intended for use in or on animals, including diagnostic equipment or test kits and their components and any product that is a veterinary medical device, drug, biologic or parasiticide or that is otherwise used in a veterinary medical setting or in veterinary medical applications that are regulated by or under the jurisdiction of:

(1) The United States Food and Drug Administration;

(2) The United States Department of Agriculture pursuant to the federal Virus-Serum-Toxin Act; or

(3) The United States Environmental Protection Agency pursuant to the Federal Insecticide, Fungicide, and Rodenticide Act, except that any such products approved by the United States Environmental Protection Agency pursuant to that law for aerial or land application are not exempt from this section;

G. A product developed or manufactured for the purposes of public health, environmental or water quality testing;

H. A product required to meet standards or requirements of the United States Department of Transportation, Federal Aviation Administration, the National Aeronautics and Space Administration, the United States Department of Defense or the United States Department of Homeland Security, except that the exemption under this paragraph does not apply to any textile article or refrigerant that is included in or as a component part of such products;

I. A motor vehicle or motor vehicle equipment regulated under a federal motor vehicle safety standard, as defined in 49 United States Code, Section 30102(a)(10), and any other motor vehicle, including an off-highway vehicle or specialty motor vehicle, such as an all-terrain vehicle, side-by-side vehicle, farm equipment or personal assistive mobility device, except that the exemption under this paragraph does not apply to any textile article or refrigerant that is included in or as a component part of such products;

J. A watercraft, as defined in Title 12, section 13001, subsection 28, or a seaplane, except that the exemption under this paragraph does not apply to any textile article or refrigerant that is included in or as a component part of such products;

K. A semiconductor, including semiconductors incorporated in electronic equipment, and equipment and materials used in the manufacture of semiconductors;

L. Nonconsumer electronics and nonconsumer laboratory equipment not ordinarily used for personal, family or household purposes; and

M. Equipment directly used in the manufacture or development of the products described in paragraphs E to L.

5. Prohibition on sale of products containing intentionally added PFAS. This subsection governs sales of products containing intentionally added PFAS.

A. ~~Effective~~ Except as provided pursuant to paragraph F or G, effective January 1, 2023, a person may not sell, offer for sale or distribute for sale in this State a carpet or rug that contains intentionally added PFAS. ~~This~~ The prohibition under this paragraph does not apply to the sale, offer for sale or ~~resale~~ distribution for sale of ~~a used~~ any carpet or rug in used condition.

B. ~~Effective~~ Except as provided pursuant to paragraph F or G, effective January 1, 2023, a person may not sell, offer for sale or distribute for sale in this State a fabric treatment that contains intentionally added PFAS. ~~This prohibition does not apply to the sale or resale of a used fabric treatment.~~

The prohibition under this paragraph applies to a fabric treatment that does not contain intentionally added PFAS but that is sold, offered for sale or distributed for sale in a fluorinated container or in a container that otherwise contains intentionally added PFAS. The prohibition under this paragraph does not apply to the sale, offer for sale or distribution for sale of any fabric treatment in used condition.

B-1. Except as provided pursuant to paragraph F or G, effective January 1, 2026, a person may not sell, offer for sale or distribute for sale in this State:

(1) A cleaning product containing intentionally added PFAS;

(2) A cookware product containing intentionally added PFAS;

(3) A cosmetic product containing intentionally added PFAS;

(4) Dental floss containing intentionally added PFAS;

(5) A juvenile product containing intentionally added PFAS;

(6) A menstruation product containing intentionally added PFAS;

(7) A textile article containing intentionally added PFAS. The prohibition under this subparagraph does not include:

(a) Outdoor apparel for severe wet conditions; or

(b) A textile article that is included in or a component part of a watercraft, aircraft or motor vehicle, including an off-highway vehicle;

(8) Ski wax containing intentionally added PFAS; or

(9) Upholstered furniture containing intentionally added PFAS.

The prohibition under this paragraph applies to any of the products listed in subparagraphs (1) to (9) that do not contain intentionally added PFAS but that are sold, offered for sale or distributed for sale in a fluorinated container or in a container that otherwise contains intentionally added PFAS. The prohibition under this paragraph does not apply to any of the products listed in subparagraphs (1) to (9) that are sold, offered for sale or distributed for sale in used condition.

B-2. Except as provided pursuant to paragraph F or G, effective January 1, 2029, a person may not sell, offer for sale or distribute for sale in this State:

(1) Artificial turf containing intentionally added PFAS; or

(2) Outdoor apparel for severe wet conditions containing intentionally added PFAS, unless the apparel is accompanied by a legible, easily discernable disclosure that includes the following statement: "Made with PFAS chemicals." The disclosure requirement under this subparagraph applies to all sales, offers for sale or distributions for sale in this State of outdoor apparel for severe wet conditions containing intentionally added PFAS, including those conducted using the Internet.

The prohibition under this paragraph does not apply to any of the products listed in subparagraphs (1) and (2) that are sold, offered for sale or distributed for sale in used condition.

C. The department may by rule identify products by category or use that may not be sold, offered for sale or distributed for sale in this State if they contain intentionally added PFAS. The department shall prioritize the prohibition of the sale of product categories that, in the department's judgment, are most likely to cause contamination of the State's land or water resources if they contain intentionally added PFAS. ~~Products in which the use of PFAS is a currently unavoidable use as determined by the department may be exempted by the department by rule.~~ The department may not prohibit by rule pursuant to this paragraph the sale, offer for sale or ~~resale~~ distribution for sale of ~~used~~ products in used condition.

Rules adopted pursuant to this paragraph are major substantive rules as defined in Title 5, chapter 375, subchapter 2-A.

D. ~~Effective~~ Except as otherwise provided in this paragraph or pursuant to paragraph F or G, effective January 1, ~~2030~~ 2032, a person may not sell, offer for sale or distribute for sale in this State any product that contains intentionally added PFAS that is not already prohibited from sale, offer for sale or distribution for sale pursuant to paragraph A, B, B-1, B-2 or C, unless the department has determined by rule in accordance with paragraph F that the use of PFAS in the product is a currently unavoidable use. ~~The department may specify specific products or product categories in which it has determined the use of PFAS is a currently unavoidable use. This prohibition does not apply to the sale or resale of used products.~~

The prohibition under this paragraph applies to any such products that do not contain intentionally added PFAS but that are sold, offered for sale or distributed for sale in a fluorinated container or in a container that otherwise contains intentionally added PFAS. The prohibition under this paragraph does not apply to:

(1) Any such products sold, offered for sale or distributed for sale in used condition;

(2) Cooling, heating, ventilation, air conditioning and refrigeration equipment, including parts and other servicing needs for such equipment; or

(3) Refrigerants, foams and aerosol propellants that are listed as acceptable, acceptable subject to use conditions or acceptable subject to narrowed use limits by the United States Environmental Protection Agency pursuant to the Significant New Alternatives Policy program, 40 Code of Federal Regulations, Part 82, Subpart G, as long as the refrigerant, foam or aerosol propellant is sold, offered for sale or distributed for sale for the use for which it is listed pursuant to that program.

E. Except as provided pursuant to paragraph F or G, effective January 1, 2040, a person may not sell, offer for sale or distribute for sale in this State:

(1) Cooling, heating, ventilation, air conditioning or refrigeration equipment that contains intentionally added PFAS; or

(2) Refrigerants, foams or aerosol propellants that contain intentionally added PFAS.

The prohibition under this paragraph applies to any of the products listed in subparagraphs (1) and (2) that do not contain intentionally added PFAS but that are sold, offered for sale or distributed for sale in a fluorinated container or in a container that otherwise contains intentionally added PFAS. The prohibition under this paragraph does not apply to any such products sold, offered for sale or distributed for sale in used condition or to parts and other servicing needs for cooling, heating, ventilation, air conditioning or refrigeration equipment, including refrigerants used in the servicing of such equipment as long as the refrigerant is listed as acceptable, acceptable subject to use conditions or acceptable subject to narrowed use limits by the United States Environmental Protection Agency pursuant to the Significant New Alternatives Policy program, 40 Code of Federal Regulations, Part 82, Subpart G and sold, offered for sale or distributed for sale for the use for which the refrigerant is listed pursuant to that program.

F. The department may by rule identify specific products or product categories containing intentionally added PFAS for which it has determined the use of PFAS in the product is a currently unavoidable use. If the department determines by rule that the use of PFAS in a product or product category is a currently unavoidable use:

(1) The product is exempt from the otherwise applicable prohibition in this subsection, or in the rules adopted pursuant to paragraph C, on the sale, offer for sale or distribution for sale of the product for one of the following periods of time, whichever provides a longer period of exemption:

(a) Five years from the effective date of the rule determining that the use of PFAS in the product or product category is a currently unavoidable use; or

(b) Five years from the effective date of the otherwise applicable prohibition in this subsection or in the rules adopted pursuant to paragraph C; and

(2) A manufacturer of the product that sells, offers for sale or distributes for sale the product in this State shall comply with the notification requirement of subsection 2.

G. The prohibitions in this subsection do not apply to a retailer in the State unless the retailer sells, offers for sale or distributes for sale a product containing intentionally added PFAS in the State for which the retailer has received a notification pursuant to subsection 8, paragraph B that the sale of the product is prohibited.

6. Fees. The department may establish by rule and assess a fee payable by a manufacturer ~~upon submission of the notification required under~~ that is required to comply with the notification requirement of subsection 2 to cover the department's reasonable costs in ~~developing rules under subsection 5, paragraphs C and D and~~ administering the requirements of ~~subsections 2 and 9~~ this section. Notwithstanding Title 5, section 8071, rules adopted pursuant to this subsection are routine technical rules as defined in Title 5, chapter 375, subchapter 2-A.

7. Failure to provide notice. Beginning January 1, ~~2025~~ 2032, a person may not sell, offer for sale or distribute for sale in the State a product containing intentionally added PFAS for which the department has determined that the use of PFAS in the product is a currently unavoidable use pursuant to subsection 5, paragraph F if the manufacturer of the product has failed to provide the information required under subsection 2~~, except that this~~

~~prohibition does not apply to:~~. This prohibition does not apply to a retailer in the State unless the retailer sells, offers for sale or distributes for sale a product containing intentionally added PFAS in the State for which the retailer has received a notification pursuant to subsection 8, paragraph B that the sale of the product is prohibited.

~~A. A product exempted from the prohibition under this subsection by the department upon a determination by the department that the use of PFAS in the product is a currently unavoidable use;~~

~~B. A retailer in the State unless the retailer sells, offers for sale or distributes for sale in the State a product for which the retailer has received a notification pursuant to subsection 8, paragraph B that the sale of the product is prohibited;~~

~~C. A manufacturer exempted from the notification requirement pursuant to subsection 2, paragraph D;~~

~~D. A product for which the department has waived the notification requirement pursuant to subsection 3; and~~

~~E. A manufacturer that pursuant to subsection 3 has received from the department an extension of the deadline for submission of the information required by subsection 2. The exception under this paragraph applies only for the duration of the extension provided by the department.~~

8. Certificate of compliance. If the department has reason to believe that a product contains intentionally added PFAS and is being sold, offered for sale or distributed for sale in violation of subsection 5 or 7, the department may direct the manufacturer of the product to, within 30 days:

A. Provide the department with ~~the~~ a certificate attesting that the product does not contain intentionally added PFAS; or

B. Notify persons ~~who sell~~ that sell, offer for sale or distribute for sale the product in this State that the sale of ~~that~~ the product is prohibited in this State and provide the department with a list of the names and addresses of those persons notified.

9. PFAS source reduction program. To the extent funds are available and in consultation with relevant stakeholders, the department shall develop and implement a program to reduce the presence of PFAS in discharges to air, water and land by encouraging the use of ~~safer~~ alternatives to and the proper management of materials containing PFAS. The program may include:

A. Information resources targeted to industrial or commercial users of PFAS;

B. Education of the general public;

C. To the extent funds are available, grants to operators of publicly owned treatment works for the purposes of developing, expanding or implementing pretreatment standards for PFAS and education of users on sources of PFAS and proper management;

D. To the extent funds are available, grants to municipalities for the purposes of educating solid waste disposal users on sources of PFAS and proper management; and

E. Other efforts determined by the department to be prudent to achieve the program's purpose.

10. Rules. The department shall adopt rules to implement this section. Except as provided in subsection 5, paragraph C, rules adopted to implement this section are routine technical rules as defined in Title 5, chapter 375, subchapter 2-A.

11. Report. By January 1, 2026, and biennially thereafter, the department shall submit to the joint standing committee of the Legislature having jurisdiction over environment and natural resources matters a report regarding the implementation of this section and other state and federal laws governing the presence of PFAS in products, including any recommendations for necessary legislative changes to this section. After reviewing the report, the committee may report out legislation relating to the report.

12. Proprietary information. Proprietary information submitted to the department by a manufacturer pursuant to the requirements of this section that is identified by the manufacturer as proprietary information is confidential and must be handled by the department in the same manner as confidential information is handled under section 1310-B.

Sec. 2. Department of Environmental Protection; report. The Department of Environmental Protection shall evaluate the feasibility of and develop recommendations as appropriate regarding the implementation of one or more product stewardship programs for any of the products containing intentionally added PFAS that are identified in the Maine Revised Statutes, Title 38, section 1614, subsection 4, paragraphs H to L or subsection 5, paragraph E, subparagraphs (1) and (2). The department shall include its findings and any recommendations from that evaluation in the report required by Title 38, section 1614, subsection 11 and due January 1, 2026 to the joint standing committee of the Legislature having jurisdiction over environment and natural resources matters.